

26 AUGUST – 1 SEPTEMBER 2026 · THE WEEK VOL. 04 FORECAST

A seven-day audit of the fortnight the last volume named in advance — the Terra hearing, the Connal decision, the Reserve launch, the criminal file going live — scored against what the record now shows actually happened.

PULSE 01 · PREDICTED VERSUS ACTUAL

The week, scored.

Vol. 04 closed by naming this fortnight's gates in advance. Here is what the record now shows happened to each of them.

It has been a heavy week, but not in the way the diary suggests. Twenty-two calendar events against a twenty-one baseline – and six of those were payment reminders. The weight was in the filings, the money and one piece of luck: **the Terra winding-ups were adjourned to October**, which means the appearance deadline blown on 25 August did not cost the position. It bought a second window instead.

DATE	GATE VOL. 04 NAMED IN ADVANCE	OUTCOME
26 Aug	145 Connal confirm-or-cancel <i>Extended to 28 Aug, then chased and unanswered</i>	SLIPPED
26 Aug	RYU boundary-adjustment session <i>Bartlett KC in the room; no outcome on the record</i>	HELD
27 Aug	Terra winding-ups heard <i>Adjourned to October. No liquidator</i>	REPRIEVED
27 Aug	Babich s357B reply, 5pm <i>Signed and staged; dispatch never confirmed</i>	UNKNOWN
28 Aug	The Reserve launch <i>Brochure still WIP; domains locked</i>	DID NOT LAUNCH
28 Aug	Terra insurer response due <i>Both their deadlines passed; DUAL silent</i>	BLOWN BY TERRA
28 Aug	Babich DD18 drawdown <i>\$1,520,253 drawn</i>	LANDED
1 Sep	Police case-management memo <i>12:22pm, with a s32 application</i>	FILED
3 Sep	Google Workspace suspension <i>Direct debit still unfunded</i>	UNRESOLVED

Three gates closed cleanly: the boundary-adjustment session sat down with senior counsel in the room, FMT drew **\$1,520,253** against Babich on the 28th, and the criminal file's case-management memorandum was filed and served at 12:22pm on the 1st with a disclosure application inside it. Two slipped quietly – Connal was extended and then left unanswered, and The Reserve did not launch. And one is still live as this is written: the Workspace direct debit.

THE SINGLE MOST URGENT ITEM

Google Workspace suspends on Thursday 3 September unless cleared funds reach the account – a direct debit, so a new card will not fix it. In the operator's own words: *"If it lapses we lose every mailbox on the domain, along with the briefing room and the sweeps."* There is no confirmation of funding anywhere in the week, and it does not appear in the 1 September risk list.

PULSE 02 · THE TWO THAT MOVED

A reprieve, and a collapse.

Terra bought time by accident; the Duncan claim shrank by four fifths.

— Terra — adjourned to October

The hearing the last volume marked as the consequence of a blown deadline came and went without a liquidator. The Commissioner sought a *final* adjournment to October; the Associate Judge noted no defence had been presented on any matter, and Terra's principal appeared in person – his counsel sick, the firm telling a journalist it "wasn't aware of the court proceedings." He offered roughly **\$100,000 tomorrow** and a personal guarantee. The bench's line was plain: it will be resolved by settlement or it will go ahead.

Two things about this are uncomfortable. First, **Citadel learned the outcome from a news alert**, not from counsel – and the file bars any date calculation until the minute or court list is obtained, so the October date is still unknown. Second, the window is open again and **nothing has been filed into it**: the file records that whether the appearance or the extension memorandum ever went is *unknown*, and notes exactly why it matters – an appearance on record reaches "any day to which the hearing has been adjourned." Claymore has sent nothing since 19 August.

The insurer notification – a completed letter to both insurers, ranked on the file as "the single highest-value act" – has now sat unreleased since 23 August.

— Duncan — from \$102,740 to \$19,349

The applicant filed his submissions on **26 August, two weeks early**. They cost him the case's size: he conceded no remaining holiday-pay entitlement and withdrew the 592-hour schedule, taking the claim from **\$102,740 to \$19,349.36**. The only live monetary input left is a commission rate – and on Citadel's figure that item flips from an \$11,010.90 claim into a **\$6,989.10 overpayment**.

Citadel's answer is drafted: eleven pages, 131 paragraphs, with a fresh simulation and a self-audit that grades it **"91/100 – review-ready, not filing-ready"** and lists six blockers. The two open questions from the hearing are now settled – the records argument is pleaded under the right section, and the reversion date is fixed at 31 March 2023. The revised model holds the modal outcome at no principal award but lowers its own confidence, and budgets a **\$5,000–\$8,000** penalty centre.

Due Wednesday 9 September at noon. Eight days, six blockers, and one affidavit still unfiled.

PULSE 03 · FILED, FOUND, AND STILL SILENT

One filed, one found out.

The criminal memorandum went in on time; the Lowthers file opened a document nobody had read.

— Police v Moinfar — filed, and no resolution offered

The memorandum was filed and served at **12:22pm on 1 September** — nine pages, a fourteen-item schedule, a twenty-six page bundle deliberately cut from sixty-four on proportionality grounds, and a disclosure application under section 32 served on the prosecutor by the same email. The prosecution's position arrived the day before and is unambiguous: *"Police are proceeding with the charges and no resolution is proposed."* Not-guilty pleas are maintained on all three charges; the matter is going to trial; the operator will appear in person on **8 September at 2:15pm**.

The week's quiet win was arithmetic. Rebuilt from the prosecutor's own pagination gaps, the disclosure position is now **94 of 138 pages withheld — 68%**. And the adversarial pass earned its keep twice over: it caught a wrong statutory ground in the draft, then proposed a second wrong one; the operative provision was found only on the third pass. The standing order held throughout — identity is not conceded on any count, and the file is careful that declining to file an alibi does not concede it.

Still to build before the bench: a one-page order of business and an oral timetable that matches the memorandum's own paragraph 10.

— Lowthers — the cap that was on disk all along

Fourteen outputs and seven model reviews in six days rebuilt this claim — and turned up the single most consequential document of the week. The letter of engagement of 15 April 2024 **caps liability at twice the fees paid**, and it carries the principal's own signature. The file does not soften it: *"You signed it. It was on disk the whole time and nobody had opened it."* Six of the nine heads are now pleaded to sit outside that cap, and the same document's authority to act destroys the other side's no-instruction defence.

The good news is that the deed does not extinguish the claim — clause 12.6(c) preserves it expressly — though the administrators retain a concurrent power to compromise it. The claim will be brought by joinder, not assignment. But the letter of claim is *still* unissued past two targets, the insurer is still unidentified — and the review doctrine has not cleared: **the adversarial pass failed five times, killed at process exit**. Nothing may go to counsel until it runs.

The Court of Appeal is the week's true silence: judgment has now been reserved 33 days, and the newest document in that entire matter file is dated 27 July.

PULSE 04 · THE WEEK REDUCED TO FIGURES

By the numbers.

26 August – 1 September 2026, measured against the week the last volume closed on.

Adjourned

TERRA, TO OCTOBER

No liquidator appointed. The blown 25 August appearance deadline did not cost the position – but nothing has been filed into the new window either.

\$1,520,253

DRAWN ON BABICH

Drawdown 18, funded 28 August against DL1021; the report reissued as Rev-1 on the 1st. Real money, real civils.

\$19,349

THE DUNCAN CLAIM NOW

Down from \$102,740 after the applicant conceded the holiday-pay entitlement and withdrew a 592-hour schedule.

12:22pm

CRIMINAL MEMORANDUM FILED

1 September, with a section 32 disclosure application served on the prosecutor by the same email.

163

NUMBERED OUTPUTS, 7 DAYS

The orchestrator went from #344 to #507, plus 47 daily agendas and 52 sweep digests.

34 hrs

ORCHESTRATOR DARK

Sweeps did not fire from 6pm Saturday to 9:30am Monday. Cause not yet diagnosed.

+628

REFERENCE LIBRARY RECORDS

1,585 to 2,213 in a week; 115 may ship, 2,098 may not. The corpus is now 3.4 gigabytes.

90 rows

THE DECISION QUEUE

Up from 75. Opened 27 July, never cleared. The constraint named in every volume since.

8

ANNUAL RETURNS LAPSED

Companies Office returns fell due 31 August across eight group entities and were confirmed overdue the next morning.

6 of 22

CALENDAR "EVENTS" THAT WERE BILLS

Twenty-two entries against a twenty-one baseline – but the real meeting load was fifteen.

6

NEW WORKSTREAMS OPENED

Parsons Green, a hospitality OpCo lane, two audit workstreams, an Obsidian decommission – and Bastion, a distressed-Wellington fund, hours after the window closed.

Dark

TELEMETRY, STILL

Every artifact this week: "Telemetry unavailable." Twenty-eight days since the counter last reported.

PULSE 05 · BABICH · CASTRA · CONNAL

The bind.

One lender now requires the very guarantee a standing order forbids – and it gates the money.

On 31 August the funder made its condition explicit: the Carrack–Castra linking guarantee **must be signed before the top-up and extension are approved** – the daily record calls it "the single highest-value blocker on the board." Against it stands the group's own standing instruction: **do not execute**, because the unlimited form risks cross-defaulting a \$47.6m facility.

The answer given was the right one – not refusal but redrafting: an unlimited, uncapped guarantee of another entity's obligation *"fails on its face"*, and a cap, a limit, a solvency buffer and preserved directors' duties are required. Counsel was told to call the funder's lawyers directly, with a second firm named as fallback. It was unsigned at week's end, so the top-up remains ungranted.

— The drawdown worked; the certificate told the truth

\$1,520,253 drawn on 28 August – report Thursday, confirmed and funded Friday, payment run out that evening. But the same report renamed itself. The quantity surveyor changed the document *"from 'Cost to Complete' to 'Drawdown' certificate, owing to the actual contingency overrun... no longer reflecting a true Cost To Complete"*, and stated plainly: **"The remaining contingency is insufficient to complete the project."** Additional funds required to complete: **\$8,606,063**. The forecast fell \$303,698 only because the funder directed that management and marketing costs be removed – not because anything got cheaper. Stage 1 practical completion moved to **23 October**; titles for Stages 1–2 now read February 2027.

And the covenant question that would let the uplift be asked for at all – open since 27 July – is still open.

145 CONNAL — AN OFFER ON THE TABLE, UNANSWERED

The extension request did go, on the 26th, asking for 11 September. The vendor countered shorter. Then on **28 August at 4:44pm** its solicitor went further: the client *"will let the contract roll over, on the basis that our client cannot cancel the agreement without first giving your client 3 working days' notice to confirm"* – and asked for confirmation that Citadel was happy with that. **No reply is on file.**

The valuation is written and **being held against an unpaid invoice** – the file's own line: *"the only thing standing between you and the valuation report, and the valuation condition falls Friday."* Underneath both: the purchasing entity shows nil cash on every record, and five streams have asked without an answer.

Five lots, still neither.

All five Babich contracts executed in August – **\$2,659,900** – have passed their condition dates without going unconditional or cancelling. The lender asked directly on 1 September which of them are unconditional. Three hours later the file noted the obvious: *"A lender chasing directly on live security lots is worth a same-day reply."*

And one that vanished.

The contractor who stopped work on site in August over **\$271,337** has not been mentioned in the record since **6 August**. Not resolved, not escalated – simply absent. Roughly 13% of it was ever committed.

PULSE 06 · ARMADA · RYU · MCLEANS · THE TOWER

Built, not shipped.

Three launch dates passed this week. One domain did go live – publishing the wrong number.

The Reserve: designed on its own launch day.

Friday 28 August was the locked date. At 00:31 *that morning* the brief changed – *"THE RESERVE WEBSITE, ONE PAGE TO SIX... the site should read as a website rather than a webpage"* – six pages plus a privacy page, newly specified. By 1 September the build was still sourcing **placeholder** imagery: watermarked stock video, free drone stock, a Muriwai still. The main site remains behind its password, the four publication blockers are untouched since 24 August, and **the vendor entity still does not appear on the Companies Office register.**

RYU: the domain went live with the wrong count.

This corrects the last volume. **ryualbany.com is now live** – the nameserver switch finally happened. It publishes **"125 freehold homes"** against a consented programme of **121**, a discrepancy the file had already ruled on in August and flagged as blocking any public number. Meanwhile there is still **no sales agency appointed in writing** – open since 17 August – while the suite was due to open; the renders have been silent since 13 August against a deposit well past its clock; and the furniture list is nineteen days overdue.

The option nobody has touched.

The land option believed to expire in October – the one the file calls critical because it *gates the whole project* – produced **"zero movement... no correspondence naming the option at all."** There is even leverage sitting ready: the same counterparty has offered another site, and the file suggests running both in one conversation. Nobody has had it.

McLeans: no award, and a take-off that was never done.

The base-build tender was to be awarded by end-August. It was not, and no award document of any kind exists. The prices surfaced only inside another deck – and the principal caught its arithmetic himself. More consequential is his own note of 27 August: **the take-off has not been done**, and only a preliminary assessment drives the circa \$6m budget. Two other numbers deserve eyes: the titles date is carried as mid-September on one board and **28 October** on the programme; and **\$108,000 released in May "to pay CCC" has no evidence of ever reaching the Council** – the file's own "top unknown", with a 10% rates penalty attaching on 1 October.

The tower: a clause that explains everything.

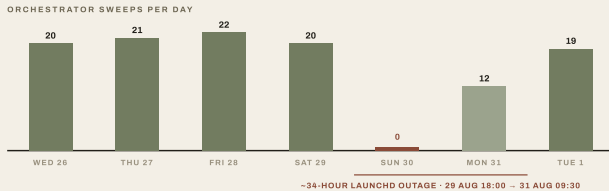
The buyer is confirmed dead, and the reason may not have been price. The Council has held **a live, unexercised re-entry right for about two and a half years** under which it could take the building for nothing – *"very likely why Kirk went quiet after his solicitors found the same clause."* The building warrant has now been expired **831 days**, a live offence carrying a fine up to \$150,000, and the Council's own report already records it. The instruction to its solicitor is due Thursday and has not been sent.

*A different demand also arrived:
\$843,608.19, on a fresh notice, with
changed bank details and a fraud caution.
It has not been reconciled against the
figure previously carried, and the account
has not been voice-verified.*

PULSE 07 · THE MACHINE, THIS WEEK

163 outputs, and 34 hours dark.

The best cadence week in a month — with one hole in the middle of it that nobody has diagnosed.



The daily record was near-perfect: **25 of 25 artifacts on Wednesday, Thursday, Friday and Tuesday** — better than any week in August, where four weekdays ran partial. Then the orchestrator stopped. Sweeps did not fire from **6pm Saturday to 9:30am Monday**; the machine rebooted at 11:29pm Saturday and the scheduled job never re-armed. Monday's morning briefing and its six team files were never written; two agendas and a digest were never generated at all.

The log is candid: *"root cause... not further diagnosed this pass."* A second symptom sits beside it — the message feed has been stale since 5 August.

COUNTERS, 25 AUG – 1 SEP

COUNTER	25 AUG	1 SEP	Δ
GODS-EYE outputs	#344	#507	+163
Daily-team agendas	137	184	+47
Sweep digests	~146	198	+52
Reference Library records	1,585	2,213	+628
Armada-GTM outputs	030-ZV	049-ZV	+19
Armada-Structure ledger	—	106 rows	D94+
Terra outputs	#048	#058	+10
FM decision queue	75 rows	90 rows	+15
Police root outputs	#302	#302	0

TWO NUMBERS TO WATCH

The board file is **ballooning again — 688KB**. It was split down to 180KB on 13 August precisely to stop one file eating a third of a context window; a fortnight later it is bigger than before the fix.

And the decision queue went **75 rows to 90** in seven days — never cleared since 27 July.

What the record cannot see.

Two mailboxes have never been scanned, and the email asking for that to be unblocked is *itself* an unsent draft. Phone calls are invisible to the sweeps. And six mass-deletion alerts have gone unanswered since 20 August, with one line worth pausing on: **"for the first time the deleter is NOT Farhad Moinfar."**

Telemetry remains dark — every artifact ends "Telemetry unavailable." On Tuesday the fallback model filled the gap with 55 phantom calendar collisions and no usable plan.

PULSE 08 · WHAT MUST HAPPEN NEXT

The next ten days.

And the three biggest dates in them that are not in the diary at all.

THE GATE LIST

2 Sep	McLeans interior design update – preliminary designs reviewed, September deliverables agreed. Then a 126 Featherston call, booked yesterday.
3 Sep	Google Workspace suspends unless the direct debit clears – and the same instrument sits behind Anthropic (already paused since 27 Aug), Notion and two more debits. One fix clears several. Also: the Tradecraft revert, now formally owed and 41 days unanswered.
4 Sep	Connal's valuation condition – pay the valuer's invoice to release the report. And the tower's Council instruction, still unsent.
5–7 Sep	RYU sales suite was to open and launch. The operator's own word to a builder on 1 September: <i>"not marketing ready. Launch is in 2 weeks."</i>
8 Sep	Police case review, 2:15pm, in person – and the Babich PCG onsite that morning, and a 16:10 flight to Christchurch.
9 Sep	Duncan closing submissions, 12:00 noon. Six blockers to clear.
10 Sep	Pasargard's sixth and final \$5,000 – and a condition due for satisfaction the same day, with the operator in Christchurch.
12 Sep	Castra mortgage interest – \$843,608.19.
Any day	Court of Appeal judgment. Reserved 33 days.
October	Terra, resumed – on a date nobody has yet obtained.

THREE DATES THE DIARY DOES NOT KNOW

A direct read of the calendar found **no entry** for the **8 September case review**, **none** for the **9 September submissions deadline**, and **none** for the **12 September \$843,608.19**. The flight to Christchurch that afternoon exists only inside another event's description, so nothing blocks the 8th either.

The Christchurch trip block is also a day out at both ends – it starts the day after the outbound flight and runs a day past the return. And a three-night hotel booking on 3–5 September carries no location and no travel legs, while a family commitment sits in Auckland mid-stay.

The pattern worth naming.

Every item that landed this week landed because a person pushed it over the line – the drawdown confirmation, the memorandum, the extension request. Every item that slipped slipped in the same place it slipped last month: **a completed document waiting on a release decision**. The insurer letter (unreleased since 23 August), the Lowthers letter of claim (two targets missed), the Connal instruction (promised, never sent), the Babich objection (signed, dispatch unconfirmed).

Last volume's verdict has not moved: the machine can draft the notice, register the deadline and ring the bell. The last metre is still human.

PULSE

*A seven-day activity audit of 26 August to 1 September 2026,
New Zealand time — the week Volume Four forecast, scored
against the record.*

Assembled from five parallel surface sweeps: the Dropbox daily record and machine output registers, the live workstream trees at team-folder root, Gmail, Google Calendar, and the litigation and commercial matter files. Every gate named in Volume Four's closing pages was scored landed, slipped, blown or unknown against primary evidence; absences are recorded as absences rather than inferred. Where the record's only source was secondary — the Terra hearing outcome reached this firm through a news report — that is stated on the page.

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BASIS

Five surface sweeps

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